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EXHIBIT E
RULES AND REGULATIONS

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA



BARWOOD CONDOMINIUM II ASSOCIATION, INC.
OF BOCA RATON

RULES AND REGULATIONS

The Rules and Regulations hereinafter enumerated as to the condominium property, the common elements, the condominium units and the condominium in general shall be deemed in effect until amended by the Board of Directors of the Condominium Association and shall apply to and be binding upon all unit owners. The unit owners shall at all times, obey said Rules and Regulations and shall use their best efforts to see that they are faithfully observed by their families, guests, invitees, servants, lessees, persons for whom they are responsible and persons over whom they exercise control and supervision. Violation of these Rules and Regulations may subject the violator to any and all remedies available to the Condominium Association and other unit owners pursuant to the terms of the Declaration of Condominium, the Articles of Incorporation of the Condominium Association, the By-Laws of the Condominium Association by injunction or other legal means and the Association shall be entitled to recover in said actions any and all court costs incurred by it, together with reasonable attorney's fees against any person violating the Rules and Regulations, or the Declaration of Condominium and any of the Exhibits attached thereto. The Board of Directors may, from time to time, adopt and amend previously adopted Rules and Regulations governing the details of the operation, use maintenance, management and control of the common elements of the condominium and any facilities or services made available to the unit owners. Any waivers, consents or approval given under these Rules and Regulations by the Board of Directors shall be revocable at any time and shall not be considered as a waiver, consent or approval of identical or similar situations unless notified in writing by the Board of Directors. THE RULES AND REGULATIONS ARE AS FOLLOWS:

1. RULES AND REGULATIONS:

- A. Violations should be reported to the Manager of BARWOOD CONDOMINIUM II in writing or to an individual named by the Board and not to the Board of Directors or to Officers of the Association.
- B. Violations will be called to the attention of the violating owner by the Manager of BARWOOD CONDOMINIUM II and he will also notify the appropriate committee of the Board of Directors.

- C. Disagreements concerning violations will be presented to and be judged by the Board of Directors who will take appropriate action.

2. FACILITIES:

The facilities of the condominium are for the exclusive use of the Association members, lessees, resident house guests, and guest accompanied by a member. No guest or relative of any member or lessee other than a house guest or relative actually in residence shall be permitted to use the recreational facilities unless accompanied by a resident member or the family of such owner or lessee. Any damage to the buildings, recreational facilities or other common areas or equipment caused by any resident or his guests shall be repaired at the expense of the owner.

3. NOISE:

In order to insure your own comfort and that of your neighbors, radio, hi-fi, and television sets should be turned down to minimum volume between the hours of 11:00 P.M. and 8:00 A.M. All other unnecessary noises, such as bidding good night to departing guests, and slamming car doors between these hours should be avoided. Your neighbors will appreciate this.

4. PETS:

No bird, reptile or animal shall be kept or harbored in the condominium unless the same in each instance be expressly permitted in writing by the Association, which permission may be conditioned on such terms as the Association in its sole discretion deems to be in the best interest of the condominium as a whole. Such permission in one instance shall not be deemed approval in any other instance; and any such permission may be revoked at any time in the sole discretion of the Association. In no event shall dogs be permitted in any of the public portions of the condominium unless carried. The owner shall indemnify the Association and hold it harmless against any loss or liability of any kind or character whatsoever arising from or growing out of having any animal in the development.

- A. No animals owned by members, shall be allowed to commit a nuisance in any public portion of the condominium building or grounds, except in areas specifically designated by the Association.
- B. An authorization in writing to keep pets will expire when a member's pet dies or is disposed of.
- C. Pets shall include all types of animals, such as dogs, cats, parrots, frogs, reptiles, turtles, etc.
- D. All pets should be carried in the arms of the owner. If this is not physically possible, they should be restrained and kept on a leash.

E. Lessees, resident house guests or visitors may not at any time have a dog or any other pet at the condominium.

5. OBSTRUCTIONS:

Sidewalks, entrances, driveways, passages, patios, courts, elevators, vestibules, stairways, corridors and halls must be kept open and shall not be obstructed in any manner. No sign, notice or advertisements shall be inscribed or exposed on or at any window or other part of the condominium except such as shall have been approved in writing by the Association, nor shall anything be projected out of any window in the condominium without similar approval. No radio or television aerial or antenna shall be attached to, or hung from the exterior of the condominium or the roof thereon.

6. CHILDREN:

Reasonable supervision must be exercised when children are playing on the grounds. Children under fifteen (15) years of age are not permitted as residents.

7. DESTRUCTION OF PROPERTY:

Neither members, their dependents, nor guests shall mark, mar, damage, destroy, deface, or engrave any part of the building. Members shall be responsible for any such damage.

8. EXTERIOR APPEARANCE:

The exterior of the condominium and all other areas appurtenant to the condominium shall not be painted, decorated, or modified by any owner in any manner without prior consent of the Association, which consent may be withheld on purely aesthetic grounds within the sole discretion of the Association. No awnings, window guards, light reflective materials, hurricane or storm shutters, ventilators, fans or air conditioning devices shall be used in or about the condominium except as shall have been approved by the Association, which approval may be withheld on purely aesthetic grounds within the sole discretion of the Association. Balcony floors may be painted any color desired or covered with carpeting, otherwise, standard exterior colors shall not be altered.

9. CLEANLINESS:

All garbage and refuse from the condominium shall be deposited with care in garbage containers intended for such purpose only at such times and in such manner as the Association will direct. All disposal shall be used in accordance with instructions given to the owner by the Association.

10. BALCONIES:

Plants, pots, receptacles, and other movable objects must not be kept, placed or maintained on ledges of balconies or terraces. No objects shall be hung from balconies or window sills. No cloth, clothing, rugs, or mops shall be hung up or shaken from

windows, doors, and balconies or terraces. Members shall remove all loose objects or movable objects from the balconies during the hurricane season. Do not throw cigars, cigarettes or any other object from your balcony. Members shall not allow anything to be thrown, or to fall from windows, doors, balcony or terrace. No sweeping or other substances shall be permitted to escape to the exterior of the building from the windows, doors, balcony or to the interior of building from hall doors.

11. INGRESS AND EGRESS:

No member shall allow exterior doors to remain open for any purpose other than for immediate ingress and egress.

12. DOOR LOCKS:

Members must abide by Paragraph 13.5, RIGHT OF ENTRY INTO PRIVATE DWELLINGS IN EMERGENCIES, of the Declaration of Condominium which reads as follows:

In case of any emergency originating in or threatening any Dwelling, regardless of whether the owner is present at the time of such emergency, the Board of Directors of the Association, or any other person authorized by it, or the building superintendent or Managing Agent, shall have the right to enter such Dwelling for the purpose of remedying or abating the cause of such emergency, and such right of entry shall be immediate, and to facilitate entry in the event of any such emergency, the owner of each Dwelling if required by the Association, shall deposit under the control of the Association a key to such Dwelling.

13. ATTIRE:

Members, their families, and guests shall not use the common elements or clubhouse except in appropriate attire.

14. PLUMBING:

Water closets and other plumbing shall not be used for any other purpose than those for which they are constructed, and no sweeping, rubbish, rags, or other foreign substances shall be thrown therein. The cost of any damage resulting from misuse shall be borne by the member.

15. ROOF:

Members are not permitted on the roof for any purpose.

16. SOLICITATION:

There shall be no solicitation by any person anywhere in the condominium for any cause, charity, or any purpose whatever, unless specifically authorized by the Board of Directors.

17. STAFF PERSONNEL:

The Staff have assigned duties and therefore, cannot provide valet parking, dog walking or sitting, handling groceries or similar personal services. They have been instructed to carry out their duties in an orderly manner. All other requests for service by the Staff must be approved by the Manager. It is asked that the Manager be notified when a unit is left unoccupied for more than a day or two.

18. SWIMMING POOL:

Members and their guests using the swimming pool do so at their own risk. Members and their guests are requested to obey the posted swimming pool rules. Children under fifteen (15) years may use the pool and facilities of the recreation area only during the hours as established by the Board of Directors and must be accompanied and supervised by a responsible adult resident.

- A. Swimming in the pool is permitted between the hours of 8:00 a.m. and 9:00 p.m. Since the pool is not guarded, persons using this facility must do so at their own risk. Persons using these facilities must be appropriately attired.

The following are basic rules for persons using the pool:

1. Shower thoroughly each and every time before entering the pool.
2. Restraining pool safety cables should be kept in place and are not to be used as swings or as a diving aid.
3. Pneumatic floats or other items of a similar nature, except swimming aids, are not permitted in the pool.
4. Pets are forbidden in the general pool area.
5. Running in the general pool area is not permitted.
6. Beverage or food is not to be consumed poolside or in any other common area except as designated by the Board of Directors.
7. If suntan oil is used, make certain that a beach towel is used to cover patio furniture.

19. PARKING:

No vehicle, boat trailer, house trailer, or camper which

exceeds a width of nine (9) feet and a length of nineteen (19) feet belonging to an owner or to a member of the family or guest, tenant or employee of an owner shall be parked on the condominium property. The owners, their employees, servants, agents, visitors, licensees and the owner's family will obey the parking regulations posted at the private streets, parking areas, and drives and any other traffic regulations promulgated in the future for the safety, comfort and convenience of the owners. No vehicle which cannot operate on its own power shall remain within the condominium property for more than twenty-four (24) hours, and no repair of vehicles shall be made within the condominium property. Each parking space is assigned as an appurtenance to a particular dwelling unit. As such, each space may be used only by the owner except when the owner has given written permission (copy to Resident Manager) for use by another owner, lessee or resident guest. You may not park your car in any space other than the one you are assigned without proper permission. A unit owner may not use more than one guest parking space for any additional vehicle owned, operated or maintained by the unit owner. Parking space sizes are adequate. Please make certain that your vehicles are parked within the painted lines and are pulled up close to the bumper. As a security measure, keep your automobile doors locked.

20. FOOD AND BEVERAGE:

Food and beverages may not be consumed in the Meeting Room, swimming pool patio or other common areas, unless specifically authorized in writing by the Board of Directors, or the Manager.

21. COMMON FACILITIES:

Members are requested to cooperate with the building Manager in the use of common facilities where more than one organized activity is scheduled for the same time.

22. HURRICANE PREPARATIONS:

Each member who plans to be absent from his unit during the hurricane season must prepare his unit prior to departure by:

- A. Removing all furniture and plants from his balcony.
- B. Designating a responsible firm or individual to care for his unit during his absence in the event that the unit should suffer hurricane damage and furnish the Manager with the name of such firm or individual. The designated firm or individual shall contact the Manager for permission to install or to remove hurricane shutters.

23. Owners shall notify the Resident Manager in advance by written notice of the arrival and departure dates of guests who have his permission to occupy a unit in his absence. Owners

should have such guests check in at the office upon arrival in order that service can be extended to them in the way of telephone calls coming into the office, incoming mail or any emergency which might arise. Guests will be given copies of rules and regulations and the owners will be responsible for the compliance of such rules.

24. LEASING OR RESALE:

The "Declaration of Condominium" for BARWOOD CONDOMINIUM II ASSOCIATION, INC., which is filed of record in Palm Beach County, specified how leasing or sale of condominium units shall be handled including the following:

- A. No owner of a dwelling shall lease or sell his condominium unit to anyone without first giving notice in writing by registered or certified mail to the Board of Directors, or by personal delivery to the Secretary or the President of the Association.
- B. The letter notifying the Association of an owners desire to lease or sell his dwelling must state the name, address and employment or occupation of the prospective lessee or purchaser. A copy of the bona fide offer to lease or sell the dwelling must also be submitted.
- C. The application forms required by the Association for the use of its facilities shall be completely filled in and signed by the prospective lessee or purchaser. The application must be accompanied by a non-refundable administrative fee of Fifty (\$50.00) Dollars to cover the Association administration expenses.
- D. The Association shall have thirty (30) days from receipt of the information requested to decide whether it will exercise its option of first refusal and will so notify the dwelling owner in writing.
- E. The lease or sales contract must contain a covenant stating that the lessee or purchaser shall comply with all present and future Rules and Regulations of the Association.
- G. Sub-leasing by lessee is not permitted, except when the Association is the lessee.
- H. No condominium unit may be leased for a period of less than four (4) months and is restricted to three (3) leases per calendar year.

- I. Leasing shall be restricted to adults only, with a limit of two (2) people for each bedroom in the condominium unit.
- J. Lessees or purchasers are not permitted to bring a pet of any kind into the condominium without approval pursuant to the provisions of Paragraph Four (4) of these Rules and Regulations.

The foregoing rules and regulations are designed to make living for you and your neighbors pleasant and comfortable. The restrictions that we impose upon ourselves are for the mutual benefit of all. Violations of these rules are to be reported to the Resident Manager who will call the matter to the attention of the violating owner, lessee or guest for corrective action. Any disagreement over the violation will be reported to the appropriate committee for subsequent judgment by the Board of Directors.

By the order of the Board of
Directors of BARWOOD CONDOMINIUM
II ASSOCIATION, INC.

GEORGE H. SPARLING
President

BARBARA M. SPARLING
Secretary

JOHN B. SPARLING
Treasurer

George H. Sparling
Barbara M. Sparling
John B. Sparling